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IN THE UNITED STATES DISTRICT COURT

FOR THE EASTERN DISTRICT OF CALIFORNIA

SACRAMENTO DIVISION

BRENDAN NGEHSI NEWANFORBI, Plaintiff, **v.** **ANDREW DERRICK, et al.,**	2:26-cv-00004-DJC **DEFENDANTS' REPLY TO PLAINTIFF'S OPPOSITION TO MOTION TO QUASH INSUFFICIENT SERVICE OF PROCES, OR, IN THE ALTERNATIVE DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT** Date: March 19, 2026 Time: 10:00 a.m. Courtroom: 9, 13th Floor Judge: Hon. Jeremy D. Peterson Trial Date: N/A Action Filed: January 5, 2026

INTRODUCTION

Plaintiff's opposition concedes that his previous attempt at mail-service was defective and his attempts to cure the defect have not resulted in complete service yet. Plaintiff also argues that Defendants' motion to dismiss is premature and should not have been filed with a motion to quash. Plaintiff's argument is not based on any authority because there are none. Defendants were entitled to raise all Rule 12(b) defenses as available to them. Plaintiff's lack of substantive response to Defendants' motion to dismiss effectively waives his opposition. Defendants' motion

to quash for insufficient service of process, or, in the alternative, motion to dismiss, should be granted.

PLAINTIFF'S OPPOSITION

Plaintiff states that on January 30, 2026, in response to Defendants' motion, he re-served his First Amended Complaint (FAC) on Defendants via mail. (Pl.'s Opp'n, ECF No. 10, at 2-4.) Accompanying the re-served FAC were summonses, Notices and Acknowledgments of Receipt, and prepaid envelopes. (*Id.*) Plaintiff states this new attempt cures his defective service and moots Defendants' motion to quash. (*Id.* at 2.) Alternatively, he argues that he is entitled to an extension of time to serve Defendants under Federal Rule of Civil Procedure 4(m) based on good cause, attempts at diligence, his pro se status, and lack of prejudice to the Defendants. (*Id.* at 4-7.) Plaintiff further states that dismissal would waste judicial resources because he would simply refile. (*Id.* at 7-8.)

Plaintiff does not address Defendants' motion to dismiss on the grounds that it is "premature." (*Id.* at 8.) He also argues that the Rule 12(b)(5) and 12(b)(6) standards should not be conflated. (*Id.*) Plaintiff requests the Court to avoid addressing Defendants' motion to dismiss by denying it and requiring them to refile it again once service is complete. (*Id.* at 8-9.)

ARGUMENT

I. PLAINTIFF CONCEDES IMPROPER SERVICE.

Plaintiff concedes that he improperly served Defendants by mail. (Pl.'s Opp'n, at 1-3.) Plaintiff claims to have properly served on January 30, 2026, by mailing another copy of the First Amended Complaint with the proper documentation. (*Id.* at 3-4.) However, mail service under California state law is not complete upon mailing. Cal. Code Civ. Proc., § 415.30. Defendants must sign and return the acknowledgement form. Cal. Code Civ. Proc., § 415.30(b). Until this occurs, no valid service exists. *Bolkiah v. Superior Ct.*, 74 Cal. App. 4th 984, 1000 (1999). Plaintiff admits this. (Pl.'s Opp'n, at 4.)

Here, Plaintiff does not show that Defendants have signed and returned the acknowledgment form, documenting their acceptance of the summons and FAC. Service by mail is not yet complete and a defect in service remains. Defendants' motion, therefore, is not moot

and even if effective service can be made, this can still justify quashing of improper service. *Weston v. Motiu*, 2025 WL 2916303, at *2 (E.D. Cal. Oct. 14, 2025).

Moreover, Plaintiff's argument that Defendants should not have filed a motion to quash in lieu of a motion to dismiss is misplaced. (Pl.'s Opp'n, at 8.) A defense of insufficient service of process is waived if not raised early. Fed. R. Civ. P. 12(h)(1)(A)-(B). And here, service of process was – and still is – insufficient.

However, to the extent Plaintiff's January 30, 2026, attempted service by mail of the FAC on Defendants Derrick and Noguchi, rather than the Attorney General's Office, and the correct documentation was served, Defendants shall, to conserve judicial resources, waive service and formally appear. Notwithstanding waiver of service, Defendants' motion to dismiss must still be addressed.

II. PLAINTIFF HAS WAIVED OPPOSITION TO DEFENDANTS' MOTION TO DISMISS.

Plaintiff argues that Defendants' motion to dismiss is premature and should not have been paired with a motion to quash. (Pl.'s Opp'n, at 7-8.) Plaintiff cites no authority for these arguments because there are none. Rule 12(g) explicitly states that "[a] motion under this rule may be joined with any other motion allowed by this rule." Fed. R. Civ. P. 12(g). In fact, parties who move under Rule 12 "must not make another motion under this rule raising a defense or objection that was available to the party but omitted from its earlier motion," to prevent prolonging the proceedings with pre-answer motion practice. Fed. R. Civ. P. 12(g)(2); *see also Moser v. Benefytt, Inc.*, 8 F.4th 872, 877 (9th Cir. 2021) (explaining that parties should bring threshold defenses together to "allow the court to do a reasonably complete job.").

Moreover, under this Court's local rules, failure to file an opposition to a motion may be deemed a waiver of any opposition to the granting of the motion. (E.D. Cal. R. 230(b).) Plaintiff's opposition is silent as to Defendant's motion to dismiss on any of the grounds asserted. Defendants' arguments, therefore, stand unopposed.

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CONCLUSION

Based on the foregoing, Defendants respectfully request the Court to grant their motion to quash for insufficient service of process, or, in the alternative, motion to dismiss for failure to state a claim.

Dated: February 12, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

Case Name: **Brendan Ngehsi Newanforbi (BF3571) v. Andrew Derrick, et al.** No. **2:26-cv-00004-DJC**

I hereby certify that on February 12, 2026, I electronically filed the following documents with the Clerk of the Court by using the CM/ECF system:

DEFENDANTS' REPLY TO PLAINTIFF'S OPPOSITION TO MOTION TO QUASH INSUFFICIENT SERVICE OF PROCES, OR, IN THE ALTERNATIVE DISMISS PLAINTIFF'S FIRST AMENDED COMPLAINT

Participants in the case who are registered CM/ECF users will be served by the CM/ECF system.

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on February 12, 2026, at Fresno, California.

L. Lambert-Martinez	***/s/ L. Lambert-Martinez***
Declarant for eFiling	Signature

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

I further certify that some of the participants in the case are not registered CM/ECF users. On February 12, 2026, the foregoing document(s) have been mailed in the Office of the Attorney General's internal mail system, by First-Class Mail, postage prepaid, or have dispatched it to a third party commercial carrier for delivery within three (3) calendar days to the following non-CM/ECF participants:

Brendan Newanforbi
1455 Cat Tail Drive
Stockton, CA 95205
In Pro Se

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on February 12, 2026, at Fresno, California.

C. Henson	***/s/ C. Henson***
Declarant for Service by U.S. Mail	Signature

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